



Bill Number: H.B. 2641

Petersen Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Adds a delayed effective date of January 1, 2029.

PETERSEN FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2641
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-1696, Arizona Revised Statutes, is amended to
3 read:

4 36-1696. Firefighting foam; prohibition; public airport
5 exception; definitions

6 A. ~~Beginning January 1, 2020, EXCEPT AS OTHERWISE PROVIDED IN THIS~~
7 ~~SUBSECTION,~~ a person, local government or state agency may not discharge
8 or otherwise use for ~~training purposes~~ ANY PURPOSE class B firefighting
9 foam that contains intentionally added PFAS chemicals unless otherwise
10 required by ~~law or~~ federal regulation. ~~THE OWNER OR OPERATOR OF A PUBLIC~~
11 ~~AIRPORT IS NOT REQUIRED TO COMPLY WITH THIS SUBSECTION UNTIL FROM AND~~
12 ~~AFTER DECEMBER 31, 2030.~~

13 ~~B. Beginning January 1, 2020, a person, local government or state~~
14 ~~agency may not discharge or otherwise use for testing purposes class B~~
15 ~~firefighting foam that contains intentionally added PFAS chemicals unless~~
16 ~~otherwise required by law or federal regulation or the testing facility~~
17 ~~has implemented appropriate containment, treatment and disposal measures~~
18 ~~to prevent uncontrolled releases of firefighting foam into the~~
19 ~~environment.~~

20 ~~C. This section does not restrict the manufacture, sale or~~
21 ~~distribution of class B firefighting foam that contains intentionally~~
22 ~~added PFAS chemicals or the discharge or other use of class B firefighting~~
23 ~~foam in emergency firefighting or fire prevention operations.~~

24 ~~D.~~ B. For the purposes of this section:

25 1. "Class B firefighting foam" means foam designed to extinguish a
26 fire that involves a flammable liquid.

27 2. "Local government" includes any county, city, town, fire
28 district or other special district that provides firefighting services.

1 3. "PFAS chemicals" means perfluoroalkyl and polyfluoroalkyl
2 substances that are a class of fluorinated organic chemicals containing at
3 least one fully fluorinated carbon atom, that are designed to be fully
4 functional in class B firefighting foam formulations and that are used as
5 a firefighting agent.

6 ~~4. "Testing" includes calibration testing, conformance testing and~~
7 ~~fixed system testing.~~

8 4. "PUBLIC AIRPORT" MEANS AN AIRPORT THAT IS OWNED BY A POLITICAL
9 SUBDIVISION OF THIS STATE OR THAT IS OTHERWISE OPEN TO THE PUBLIC.

10 <<Sec. 2. Effective date

11 [This act is effective from and after December 31, 2028.]>>

12 Enroll and engross to conform

13 Amend title to conform

WARREN PETERSEN

2641FloorPETERSEN.docx

04/07/2026

12:29 PM

C: MH

1300MAKGI